

From: [Sally Mattison](#)
To: [ostp-ai-rfi](#)
Subject: [External] AI Action Plan
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I am responding to the RFI on the development of an AI Action Plan.

First, I reject the premise that "the Biden-Harris AI Executive Order 14110 of October 30, 2023 (Safe, Secure, and Trustworthy Development and Use of Artificial Intelligence)... hampered the private sector's ability to innovate in AI by imposing burdensome government requirements restricting private sector AI development and deployment."

Second, I question whether "sustaining and enhancing America's AI dominance" is (a) realistic (the U.S. doesn't seem to be dominant, after DeepSeek) and (b) a worthy goal. Competitiveness, yes; excellence, yes; dominance -- why? Why must there be a dominator?

With respect to some of the specific policy topics mentioned in the RFI:

a) IP: the AI Action Plan should be developed with a respect for and recognition of longstanding copyright laws and policies that make America the global leader in the creative industries. Creative industries are an area where the U.S. arguably *is* still dominant -- in part because of excellence and variety. Let's keep it that way. AI-created works should have to be labeled as such, and to the extent that AI is used in any part of the creation of a work, that should have to be disclosed. Any ingesting of copyrighted works for machine learning must be authorized *by the creator*, licensed and paid for at a mutually agreeable rate (not per a contract of adhesion). It is human creators that need to be supported and protected, not machines. It is human creation that other humans long for, not derivative pablum spat out by machines. To the extent that companies market AI-created products (such as library music or artwork), a portion of the profit should be directed to a fund for human creators.

b) energy consumption and efficiency:

AI systems and data centers consume vast amounts of water and energy. All parts of the AI supply chain must be immediately re-designed so as to be zero energy and zero water. All AI infrastructure should be designed to have a *net positive impact* on biodiversity. There is no justification for yet another technological "advance" which further wrecks our natural environment. All that AI profit will be useless on an inhabitable planet.

c) cybersecurity/data privacy/national security and defense

The U.S. must be particularly careful about these entwined issues. Our nation must work together with democratic nations to prevent Russia, China, North Korea, Iran and other foes from using AI to exploit our nations' infrastructures and our residents' and organizations' security and privacy. The precautionary principle should apply. There must be stringent rules, clear deterrents, and punishments for those who violate our cybersecurity, data privacy, and national security.

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